VILLAGE OF
PLEASANT
PRAIRIE

Office of the Community Development
Director
Rob Hanson

VIA EMAIL

August 25, 2026

Mr. Jason Lueders
Zilber Property Group
710 N Plankinton Ave.
Milwaukee WI 53203

Dear Mr. Lueders:

The purpose of this letter is to inform you that on August 17, 2026 that the Village Plan Commission conditionally approved **Site and Operational Plans** to construct a 152,334 square foot speculative industrial building on the property located at the southwest corner of STH 31 and 108th Street (Tax Parcel Number 92-4-122-272-0502) in LakeView Corporate Park subject to the following comments and conditions:

Comments:

Site Access: Access to the site will be from two driveways on 108th Street that align with the driveway entrances on the north side of 108th Street and no access is allowed on STH 31. The site provides 91 parking spaces (including 4 ADA spaces) with 15 trailer stalls on the south of the building. Any future parking expansion will be required to meet the then current requirements of the Village. The building will include two (2) drive-in doors, and 16 dock doors on the south side of the building. In addition, stormwater retention facilities will be constructed on the site.

> *Note: On* February 17, 2020, *the Village Board conditionally approved a Conceptual Plan for Zilber Property Group to develop the property with two (2) speculative industrial buildings. Building 1 was proposed to be 147,600 square and Building 2 was proposed to be 60,758 square feet. The site has wetlands, 100-year floodplain and no direct access to STH 31 which makes this site a challenge to develop. As such, the site was not intended to be subdivided and access to service the two buildings was proposed to be from two access points on 108th Street. This Conceptual Plan approval expired in 2021 since the required Site and Operational Plans for the development of the site had not been considered by the Plan Commission.*

Public Utilities: Municipal sewer and water are located within 108th Street adjacent to the property. Municipal sewer is located within a portion of STH 31 adjacent to the property and is not intended to be extended any further south in STH 31 now or in the future. Municipal water will be extended south along the east property line (adjacent to STH 31) in an easement on the property pursuant to the public improvement plans.

Wetlands and Floodplain: The wetlands on the property were originally field delineated by Wetland & Waterway Consulting, LLC in April 2016 and re-delineated on April 8, 2026 by a WI DNR Assured Biologist with LANDCO$_2$. Some of the wetlands on the site are intended to be filled to allow for construction of the building and site improvements. The WI DNR has determined that an old sedimentation basin is exempt from wetland regulations and had issued a fill permit on September 23, 2022, which expired on September 26, 2025, to fill some of the wetlands on the property. The ACOE also issued a wetland fill permit on October 26, 2022, which expired on December 3, 2025. Valid wetland fill permits/approvals are required to be submitted from the WI DNR and AOCE prior to issuance of any permits.

As part of the development, a floodplain boundary adjustment pursuant to Village Board Resolution #20-08, adopted by the Village Board on February 17, 2020 is still proposed to be completed. The floodplain boundary adjustment allows for the filling of approximately 256 cubic yards of floodplain and creating approximately 1,347 cubic yards of floodplain. On December 22, 2020, FEMA issued Conditional Letter of Map Revision (CLOMR 20-05-3166R); however, the required Village permits to complete the floodplain boundary adjustment have not been submitted and no filling has been completed to date. In 2024, the Village adopted a new Floodplain Zoning Ordinance (Chapter 430) which will also require the issuance of a Floodplain Development Permit with the required Village Erosion Control Permit prior to work commencing related to the floodplain boundary adjustment.

When the floodplain adjustment work is completed an as-built drawing with calculations shall be provided to the Village for review prior to submitting to FEMA and obtaining a Letter of Map Revision (LOMR). In addition, a CAD drawing and pdf plan that clearly illustrates the floodplain boundaries (prior to the adjustment) and the floodplain as amended shall be submitted with the required as-built drawing associated with the floodplain boundary adjustment to be used for the required notice to amend the Ordinance.

The required Comprehensive Plan, Floodplain Zoning Ordinance Amendments related to the wetlands remaining on the property after the filling and the floodplain boundary adjusted areas will be considered by the Plan Commission and Village Board when the final FEMA approval is obtained related to the floodplain boundary adjustment.

Site and Operational Plan approval will be required for any future interior building or site modifications or prior to any tenant intending to occupy the building pursuant to the Site and Operational Plan requirements of the Village Zoning Ordinance (Article IX of Chapter 420 of the Village Municipal Code). In addition, prior to any new tenant occupying the building a primary monument sign shall be installed pursuant to the Village Zoning Ordinance requirements.

Conditions:

1. Subject to Village Board approval of the Certified Survey Map, Public Improvement Plans and Development Agreement as conditionally approved by the Village Board on August 24, 2026). See separate approval letter associated with the conditions of approval for the CSM, Public Improvement Plans and Development Agreement.

   Note: Development Agreement shall be executed and financial security provided for the watermain; and the CSM and the Storm Water Maintenance Agreement for the development shall be executed and recorded prior to issuance of any permits for the project.

2. This Site and Operational Plan approval is valid for 6 months. Prior to the approvals expiring the commercial building permit for the new building shall be submitted and issued by the Village.

3. See ***attached*** comments from the Village Engineering Department dated August 11, 2026 related to the Site and Operational Plans. A revised pdf of the final Site and Operational Plans shall be provided to the Village for final staff review and approval.

4. Submit a draft Preconstruction Agenda, Site Logistics Plan and Construction Schedule for review with the revised Site and Operational Plans. See ***attached*** draft Preconstruction Agenda for your use.

   The purpose of the preconstruction meeting is to discuss the construction, site logistics, schedule, inspection process and requirements in detail with the owner, engineer, general contractor and the staff inspectors. The Design Engineer of Record/Project Manager shall coordinate, moderate and prepare the agenda and minutes of the preconstruction meeting.

5. ***Upon Village staff review and approval of the revised Site and Operational Plans, draft Preconstruction documents as noted above, then the following shall be submitted:***

   a. Written approval from the LakeView Owners Association *(Required to be submitted prior to the Village scheduling the preconstruction meeting).*

   b. Valid permits/approvals from the WI DNR and US ACOE to fill a portion of the wetlands. *(Required to be submitted prior to the Village scheduling the preconstruction meeting).*

   c. A recorded copy of the CSM and the Storm Water Maintenance Agreement. *(Required to be submitted prior to scheduling the preconstruction meeting).*

   d. Copies of permits/approvals from the WI DOT for any work within the STH 31 right-of-way, if applicable. *(Required to be submitted prior to scheduling the preconstruction meeting).*

   e. Erosion Control Permit application including the WI DNR NOI. *(Required to be submitted prior to scheduling the preconstruction meeting).*

   f. Floodplain Development Permit application *(Required to be submitted prior to scheduling the preconstruction meeting).*

   g. Village Work in the right-of-way permit. *(Required to be submitted prior to scheduling the preconstruction meeting).*

   h. Village commercial driveway permit application. *(Required to be submitted prior to scheduling the preconstruction meeting).*

   i. New Commercial Building permit application.

   j. Commercial mechanical, electrical or HVAC permit applications, as applicable.

   Note: Permit applications can be filed online through the Village's online portal. Appling online will also allow the applicant to pay the required permit fees and schedule inspections online. The Village's Permit Portal can be found on the Village's website at www.pleasantprairiewi.gov under the tab "*How Do I*", then select "*Apply For*" then select "*Permit Applications*".

6. **THE VILLAGE STAFF WILL CONTACT THE ENGINEER OF RECORD/PROJECT MANAGER TO SCHEDULE THE PRECONSTRUCTION MEETING WHEN ALL DOCUMENTS/PERMITS REQUIRED TO BE SUBMITTED PRIOR TO SCHEDULING THIS MEETING ARE SUBMITTED.**

7. **Following the pre-construction meeting the required permit fees shall be paid and permits obtained from the Village and construction may commence.**

8. Site and Operational Plan approval will be required for any future interior building or site modifications or prior to any tenant intending to occupy the building pursuant to the Site and Operational Plan requirements of the Village Zoning Ordinance (Article IX of Chapter 420 of the Village Municipal Code). In addition, prior to any new tenant occupying the building a primary monument sign shall be installed pursuant to the Village Zoning Ordinance requirements.

9. The development shall comply with the current ordinances in effect including but not limited to the Village Land Division and Development Control Ordinance, Village Municipal Codes, Zoning Ordinance, Design Standards and Construction Specifications, Construction Site Maintenance and Erosion Control Ordinance and the State adopted International Building Code, Plumbing, Lighting, HVAC and the National Electric Code (NEC).

10. The hours of construction activity, operating heavy machinery or equipment associated with the grading, erosion control device installation, and overall site development shall be limited to Monday through Friday from 6:00 a.m. to 9:00 p.m. and Saturday and Sunday from 6:00 a.m. to 6:00 p.m. unless extended hours are specifically approved by the Village Community Development Director.

11. The Village shall approve of the location of all contractor parking and the location of construction trailers parked on the site during construction activities as a part of the Erosion Control Permit. Construction trailers and construction vehicles shall not be parked on any adjacent public streets.

12. Impact fees pursuant to Chapter 379 of the Village Code are required to be paid at the time the Village building permit is issued for the proposed addition.

13. The following, at a minimum, is required prior to obtaining a Certificate of Occupancy for the building shell and associated site improvements.

    a. All exterior building and site improvements shall be completed and inspected to the Village's satisfaction in accordance with the approved Site and Operational Plan approvals.

    b. Obtaining the Letter of Map Revision (LOMR) from FEMA and submitting a CAD drawing and pdf plan that clearly illustrates the floodplain boundaries (prior to the adjustment) and the floodplain as amended to be used for the required notice to amend the Ordinance. The required Comprehensive Plan, Floodplain Zoning Ordinance Amendments related to the wetlands remaining on the property after the filling and the floodplain boundary adjusted areas will be considered by the Plan Commission and Village Board when the final FEMA approval is obtained related to the floodplain boundary adjustment.

    c. All required landscaping and site stabilization related to the addition shall be installed. A written letter of verification and certification shall be provided to the Village by the landscape installer that all landscaping has been installed in accordance with the approved landscape plan. However, if cold weather conditions prevent installation of a portion of the landscape materials, the developer, owner or occupant shall enter into a written agreement with the Village that specifies the date by which all approved landscaping shall be completed and grants the Village a temporary easement to complete the landscaping if not timely completed. In addition, a cash deposit, an irrevocable letter of credit, or other financial assurance shall be provided to the Village to ensure timely completion of all required landscaping. The amount of the financial assurance shall be equal to 110% of the contracted amount to complete the landscaping improvements in order to compensate the Village for the cost of completion of any landscaping improvements not completed within the specified time.

    d. All man-door exits and entrances shall be attractively and consistently numbered (minimum of 3" high numbers), inside and outside, beginning in the front of the building with "1" and moving in a clockwise fashion around the building (Use the same font, color, size placement for the numbers). The numbering system allows for easy identification of where first responders are needed or the location of a safe entry point.

    e. One (1) electronic copy of an as-built plan, stamped by a Wisconsin Registered Land Surveyor shall be submitted to the Village to verify that required building, above ground structures including signage and all impervious surfaces meet the minimum setbacks and that all signage and pavement markings were installed per the approve site plans and the grading of the site was completed pursuant to the approved Site and Operational Plans.

f. One (1) electronic copy of the as-built record drawings of all graphical data of all private sewer, water, and storm sewer facilities and underground irrigation systems installed shall be provided to the Village in order for the Village to update the Village's Geographic Informational System. Information shall conform to the Village's electronic format requirements. In addition, a paper copy prepared and stamped by the Engineer of Record for the project shall be submitted.

14. No use shall be conducted to constitute a public or private nuisance or to violate any of the performance standards set out in Section 420-38 of the Village Zoning Ordinance.

15. There shall be no outdoor storage or display of products, materials, goods, raw materials, business supplies, pallets, racks, crates, equipment, recycled materials, etc. on this site. ALL PRODUCTS, MATERIALS, GOODS, EQUIPMENT, ETC. SHALL BE LOCATED INSIDE THE BUILDING.

16. The use of semi-trailers, storage units, storage bins, roll-off storage devices (e.g. P.O.D.S., S.A.M.S.) or other trucks, for storage purposes is prohibited.

17. The properties shall not be used for any parking (neither overnight nor during the day) of junked/inoperable/dismantled/unlicensed vehicles. All junked/inoperable/ dismantled/unlicensed vehicles that are parked overnight will be issued citations.

18. All vehicles parked on the property shall be parked in an approved and marked parking space. No vehicles shall be used/parked as another form of commercial sign advertising for the business or use on the property.

19. At no time shall the property be used to sell or advertise any vehicles that are "for sale".

20. No vehicular parking will be permitted in driveways, maneuvering lanes, fire lanes or within any landscaped areas.

21. All exterior mechanical units, whether roof-mounted or ground-mounted, shall be screened from the public's view.

If you have any questions, do not hesitate to contact Peggy Herrick, Assistant Community Development Director, directly at the Village Municipal Building at (262) 925-6716.

Sincerely,



Rob Hanson
Community Development Director

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